COLORADO

Chief Information Officer & Executive Director

Governor's Office of Information Technology

Statewide GenAI Policy

Document ID	POL-AI-001
Title	Statewide GenAI Policy
Executive Sponsor	David Edinger, Chief Information Officer & Executive Director
Issuing Authority	Governor's Office of Information Technology (OIT)
Applies to	All consolidated state agencies and individual users of state-governed IT resources, assets, and systems.
Instrument Type	Policy
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1. Purpose

This policy supports the appropriate development, deployment, and use of generative artificial intelligence (GenAI) systems, products, services, tools, and content within consolidated state agencies.

This policy should not be interpreted as superseding existing state law or Governor's Office of Information Technology (OIT) policy. Rather, any use of GenAI should operate within existing technology processes and procedures, in addition to the requirements outlined in this policy. Consolidated agencies should consult their assigned IT Director when there is a perceived conflict between this policy and existing state law or other OIT policy.

2. Policy

All consolidated state agency efforts that include the development or deployment of GenAI systems, or other technologies with related GenAI components or considerations, must undergo an intake and risk assessment by OIT. This also applies to third-party vendor use cases and projects.

Individual users within state agencies that use GenAI products, services, tools or content must follow all existing Colorado Information Security Policies (CISPs) and standards. Individual users must adhere to these requirements while using state-governed IT resources, assets and systems, when conducting business on behalf of the state and using the state's data.

3. Applicability

This policy applies to all consolidated state agencies and individual users of state-governed IT resources, assets and systems.

This policy does not apply to artificial intelligence features premised on machine learning without a generative component, such as fraud and spam filters or autocorrect software for spelling. Additionally, this policy does not govern the personal use of GenAI on personal devices.

4. References

- National Institute of Standards and Technology (NIST) AI Risk Management Framework
- Colorado Information Security Policies
- Colorado Revised Statutes, Section 24-37.5-105.2
- 1 CCR 101-9 Procurement Rules
- Enterprise Project Management Office (EPMO) Project Lifecycle Methodology
- Glossary of AI Terms

5. Definitions

- Consolidated State Agency (state agencies): Refers to all of the state agencies for which OIT is the provider of information technology services and support. As defined in C.R.S. 24-37.5-102(28), these are “all of the departments, divisions, commissions, boards, bureaus, and institutions in the executive branch of the state government.” State agency does not include the legislative or judicial departments, the department of education, law, state or treasury, or state-supported institutions of higher education.
- GenAI: An artificial intelligence technology that creates synthetic digital content of images, videos, audio, text, and other digital content from large bodies of data in response to user prompts. Unlike other artificial intelligence systems that are designed to perform specific tasks based on predefined rules and patterns, GenAI is capable of producing novel and unique outputs.
- Individual Users: All State of Colorado employees, temporary workers, contractors, interns, volunteers, third-party vendors, and all other persons or entities granted access to non-public State of Colorado information technology resources, assets, and systems.

6. Responsibilities

Consolidated State Agency Responsibilities

- Proposals for Deployment of GenAI systems: State agencies must obtain OIT approval prior to deploying new GenAI systems, and must ensure their use of GenAI is in accordance with OIT policies, standards and procedures and all applicable state and federal laws and regulations.
- Development of GenAI systems: State agency efforts to develop GenAI systems must be done in accordance with the project management processes defined by OIT's Enterprise Project Management Office (EPMO), and comply with applicable OIT policy and standards and Colorado state and federal law.
- Human Review of Consequential Decisions: GenAI used by state agencies may assist a human reviewer but may not independently make determinations materially impacting individuals or entities. For all state programs and services that use GenAI to assist with determinations concerning whether individuals or entities receive a state benefit or funding, or whether an adverse action should be taken against an individual or entity (arrest, detention, etc.), a human must be the ultimate decision-maker as part of the workflow.

Individual User Responsibilities

- Individual users are strictly required to ensure their use of GenAI is in accordance with OIT policies, standards, procedures and all applicable state and federal laws and regulations.

Office of Information Technology Responsibilities

- OIT is required by state law in Colorado Revised Statutes Title 24 Article 37.5 to enforce technology and security standards and to conduct due diligence and audits of contractors.
- Determine the risk of GenAI cases using the NIST Framework to document and maintain processes.
- Refer all high-risk cases to OIT's Chief Information Officer, or designee, in consultation with the Governor's Office and the relevant state agency's executive leadership for review.

7. Compliance

Failure of state employees or other users to comply with this policy may result in, as applicable:

- Loss of or reduced access to state IT resources.
- Corrective action and/or disciplinary action up to and including termination of employment.
- Referral to law enforcement.

A violation of this policy by temporary workers, interns, volunteers, contractors or vendors may result in termination of their contract or assignment with the State of Colorado.

Failure of a consolidated state agency to comply with this policy may result in, as applicable:

- Agency-level sanctions regarding state IT resources.
- Restriction, deactivation or suspension of the project or system.

8. Expiration

This policy remains in effect until superseded or rescinded by the State Chief Information Officer.